



DEADLY WEAPONS MUST BE REGULATED

THE NATIONAL FIREARMS ACT (1934)

IN CONTEXT

FOCUS

Gun control

BEFORE

1791 The Second Amendment confirms the right to bear arms on the grounds of self-defense.

1929 In the St. Valentine's Day Massacre, seven gang members are brutally murdered in Chicago.

1933 Giuseppe Zangara attempts to assassinate President-elect Roosevelt; he fatally wounds Chicago mayor Anton Cermak, and the call for gun control grows louder.

AFTER

1993 The number of American firearm homicides per year peaks; after soaring in the 1960s, it declines sharply from 1993 to 2000, then rises again.

2000–2019 A total of 710 people are killed in mass shootings across the US.

The Second Amendment to the US Constitution makes it explicit that “the right of the people to keep and bear Arms shall not be infringed.” It was intended to safeguard the citizens of the newly independent republic from attack, potentially even from their own government, by allowing for “a well-regulated militia.” The debate as to whether this right is an incitement to violence or a cornerstone of American liberties has raged ever since.

Despite ambiguous Supreme Court rulings in 1875 and 1886—both, in effect, watering down the Second Amendment—the National Firearms Act of 1934 was the first federal attempt at gun-control legislation. It was passed soon after the repeal of Prohibition, largely in response to public disquiet at the unchecked gang warfare during that era, when criminals gained control of the alcohol trade.

The Act applied to only two types of weapons: machine guns and short-barreled guns. Neither was banned. The intention was to

tax them out of existence, with a \$200 levy imposed on all sales. In addition, owners of such weapons were required to register them. The Act did not apply to handguns.

The results of the Firearms Act were mixed. It mainly penalized the law-abiding, doing little to deter the criminal, who were unlikely to be swayed by legal directives. Further Supreme Court rulings in 2008, 2010, and 2016 have failed to provide a resolution to this deep ideological fault line in American society. ■



The deadliest mass shooting in the US took place on October 1, 2017, in Las Vegas, when Stephen Paddock opened fire at a music festival. He killed 58 people and injured a further 413.

See also: The US Constitution and Bill of Rights 110–117 ■ The Declaration of the Rights of Man 118–119 ■ The US Supreme Court and judicial review 124–129